From: Daniel Faucitt <dan@regima.com>
Sent: 02 November 2025 21:44:50
To: Jacqui Faucitt <jax@regima.zone>
Subject: Re: AD NOTES - JACQUELINE FAUCITT
Attachments: Counter-Application_Evidence_Mapping_for_Delinquency_Declaration.pdf; Section_162_Application_to_Declare_Director_Delinquent_or_Under_Probation.pdf; COUNTER_APPLICATION_FINAL_STRATEGY.md.docx; Affidavit_Improvement_Recommendations_(v4).docx; Legal_Entities,_Relations,_Events_&_Timeline_Analysis.pdf

Here attached

From: Jacqui Faucitt <jax@regima.zone>
Sent: Sunday, 02 November 2025 21:38
To: Daniel Faucitt <dan@regima.com>
Subject: Re: AD NOTES - JACQUELINE FAUCITT

BANTJIES CONFIRMING THE MISALLOCATION OF FUNDS, SUSPICIOUS TRANSACTIONS AND REPORTING MURDER RELATED THEFT AS WELL AS TRANSFER PRICING (INTER-COMPANY TRANSACTIONS.

7.2 PETER CLAIMED ONLY IN JULY TO NOTICE WHEN WE WERE TRYING TO RESOLVE WITH SARS AUDIT AND INTERNAL REPORTS <u>INSERT REPORTS</u>

7.3 THIS IS A COMPLETE MISCHARACTERISATION TO TRY AND CLAIM URGENCY AND TO MOVE PROXIMITY WITH THE DATES THAT ARE MONTHS OUT.

|:----------|:----------|

| **AD 7 - Urgency and Delay Considerations | | THERE IS NO REASON FOR THE URGENCY FOR THE APPLICANT. THERE IS, HOWEVER, REASON FOR URGENCY ON THE PART OF JACQUI & DANIEL AS THERE IS FINANCIAL IMPACT DUE TO PETER'S ACTIONS AND HE ALLOWING RYNETTE FARRAR BOOKKEEPER DO ALL BANKING TRANSACTIONS. ON A DAILY BASIS THIS BOOKKEEPER TRANSFERS FUNDS BETWEEN ACCOUNTS AND JACQUI & DANIEL ARE UNABLE TO SEE ANY OF THESE ACCOUNTS**

| **AD 7.3 - Urgency Details | |THERE WAS NO URGENCY ON THE PART OF THE APPLICANT. HOWEVER, THERE HAS BEEN, AND CONTINUES TO BE MASSIVE IMPACT ON REGIMA SKIN TREATMENTS AS THE BOOKKEEPER DOES NOT KNOW ANYTHING ABOUT MY COMPANY AND IS ACTUALLY CAUSING HARM. THERE WAS AN ANNUAL PRICE INCREASE DUE, USUALLY DONE BY DANIEL, WHO IS A MATHEMATICIAN, AND INSTEAD THE BOOKKEEPER HAS DONE IT AND CAUSED DREADFUL HARM TO THE STRUCTURE OF HOW THIS INCREASE IS CARRIED OUT.**

IT IS NOTEWORTHY THAT I, JACQUI FAUCITT, C.E.O., LAUNCHED REGIMA SKIN TREATMENTS 33 YEARS AGO AND HAVE BUILT UP THE COMPANY TO BE ONE OF SOUTH AFRICA'S MOST SUCCESSFUL SKIN TREATMENT COMPANIES, HAVING WON ALL THE MAJOR INDUSTRY AWARDS. EVERY WORD EVER WRITTEN ABOUT THE REGIMA SKIN TREATMENTS HAS BEEN WRITTEN BY JACQUI FAUCITT. REGIMA IS ALSO SOLD OVERSEAS AND IS EXTREMELY SUCCESSFUL. I, JACQUI, HAVE TREATED THOUSANDS OF PATIENTS, REFERRED FROM LEADING PLASTIC SURGEONS, TREATING MAINLY SCARRING AND BURNS AS WELL AS REJUVENATION WITH OUR SLOGAN BEING "PRODUCTS THAT CHANGE LIVES" THERE IS NOBODY AT THE REGIMA OFFICE BUILDING WHO CAN TREAT PATIENTS, ONLY ME.

| **AD 7.6** - Financial Impact of Misconduct | |NOT TRUE TO THE APPLICANT, HOWEVER, THERE IS IMPACT TO OUR ENTITIES, AS CONFIRMED BY E-MAILS BETWEEN OURSELVES AND BANTJIES. BANTJIES SUPPORTING AFFIDAVIT WHICH WAS COMPLETELY FALSE (INSERT REPORT)

7.8 UNFORTUNATELY NEITHER DAN NOR MYSELF HAD CONTROL OF ANY OF THE ACCOUNTS AS THESE WERE CONTROLLED BY RYNETTE FARRAR, BOOKKEEPER AND HAVE BEEN SINCE THE INTERDICT, WHICH IS DAMAGING ALL THE ENTITIES ON A DAILY BASIS AS Ms FARRAR DOES NOT APPEAR TO KNOW HOW TO RUN BUSINESSES.

IT IS NOTEWORTHY THAT PETER DOES NOT USE A COMPUTER WHATSOEVER. HE DOES NOT DO ANY OF THE BANKING WHATSOEVER, HE ALLOWS THE BOOKKEEPER TO DO ABSOLUTELY ALL BANK TRANSACTIONS

| **AD 7.8** - Continuing Harm to Corporations | |TOTALLY DENIED WTH BANTJIES THANKING DAN FOR DETAILED REPORTS

| **AD 7.10** - Card Cancellations and Service Interruptions | |ALL CARD CANCELLATIONS WERE CARRIED OUT BY PETER ALONE IN SECRET.

| **AD 7.13** - Domain and Service Halts Due to Card Cancellations | | PETER CANCELLED ALL ACCOUNTS INCLUDING SAGE, WHEN WE DISCOVERED RYNETTE WAS IMPERSONATING PETER USING HIS E-MAIL ADDRESS, PETE@REGIMA.COM. PAYMENTS DEFAULTED BECAUSED PETER CANCELLED (SECRETLY) ALL THE WORLDWIDE FNB CARDS, SPECIFICALLY JACQUI & DAN CARDS.

NOBODY INFORMED EITHER DAN OR JACQUI.

RYNETTE

| **AD 7.16** - RYNETTE TOOK THE REGIMA LOGO AND IP INFORMATION AND PUT IT IN HER Son's NAME. THIS CAUSED MAJOR Interference with Business Operations | RYNETTE SENT OUT E-MAILS INSTRUCTING THE REGIMA DATABASE NOT TO USE OUR E-MAIL ADDRESSES AND TO USE NEW ONES SHE PUT IN PLACE – THIS WAS WITHOUT INFORMING JACQUI OR DANIEL - REGIMASKIN.CO.ZA|

| **AD 7.18** - Email and Account Access Interference | |RYNETTE CANCELLED OUR REGIMA.ZONE E-MAIL ADDRESSES

| **AD 7.20** - Continued Interference Not in Corporate Interests | |PETER INSTRUCTED RYNETTE, BOOKKEEPER TO CANCEL ALL SHOPIFY AND OTHER SYSTEMS THAT HAD BEEN SET UP TO AUTOMATE SALES, WHICH WERE WORKING SO WELL, SAME SYSTM AS THE UK SUCCESSFULLY USES

Section 5: Financial Discrepancies and Misconduct (AD 8.4-9.3)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 8.4** - Discovery of Financial Discrepancies | |

| **AD 8.5** - Accountant's Attendance and Findings | |

| **AD 8.7** - IT Expenses and Tax Problems | |

| **AD 8.10** - International Expenses and Tax Implications | |

| **AD 9.2** - Bank Message Regarding International Transfers | |

| **AD 9.3** - Financial Misconduct Summary | |

Section 6: Application to Declare Respondents Delinquent (AD 10.1-10.14)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 10.1** - Relief Sought - Delinquency or Probation | |DENIED

| **AD 10.3** - Delinquent Conduct of Respondents | |DENIED

| **AD 10.4** - Contravention of Companies Act | | DENIED

| **AD 10.5.2** - Probation Relief Under Section 162 | |

| **AD 10.6** - Close Corporations Act - Fiduciary Duties | |THE APPLICANT HAS NOT

| **AD 10.6.1** - Member's Duty to Manage in Corporation's Interest | |

| **AD 10.6.2** - Member's Duty Not to Exceed Powers | |

| **AD 10.6.3** - Member's Duty to Avoid Conflicts of Interest | |

| **AD 10.7** - Member Liability for Breach of Fiduciary Duty | |

| **AD 10.7.1.2** - Liability for Economic Benefit Derived | |

| **AD 10.7.1.4** - Liability for Loss Suffered by Corporation | |

| **AD 10.8** - Disqualification for Misconduct Under Section 47 | |

| **AD 10.8.1** - Declaration of Delinquency as Alternative Relief | |

| **AD 10.9** - Mandatory Disqualification Under Section 162(5) | |

| **AD 10.9.2** - Intentional or Grossly Negligent Harm | |

| **AD 10.9.3** - Manner of Acting - Gross Negligence or Misconduct | |

| **AD 10.9.3.1** - Gross Negligence or Wilful Misconduct | |

| **AD 10.9.3.2** - Acquiescence to Fraudulent Acts | |

| **AD 10.9.3.3** - Party to Omission with Fraudulent Purpose | |

| **AD 10.10** - Probation Under Section 162(7) | |

| **AD 10.10.2.3** - Oppressive or Prejudicial Exercise of Powers | |

| **AD 10.10.2.4** - Conduct with Oppressive or Prejudicial Result | |

| **AD 10.10.22** - Business Conducted in Oppressive Manner | |

| **AD 10.10.41** - Conduct Inconsistent with Duties | |

| **AD 10.13** - Unaccounted Money - Significant Sums | |

| **AD 10.14** - Full Extent of Transgressions Not Yet Determined | |

Section 7: UK Operations and Alleged Fraud (AD 11.2-12.4)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 11.2** - UK Head Office - RegimA UK Ltd | | OWNED BY DANIEL FAUCITT

| **AD 11.3** - Directors of UK Entity | |THE APPLICANT HAS NO ROLE WHATSOEVER IN THE ROLE OF THE UK ENTITY

| **AD 11.4** - Applicant's Role in Operations | |THE APPLICANT HAS NO ROLE WHATSOEVER IN THE UK ENTITY ONLY JACQUI & DANIEL ARE ESSENTIAL FOR THE UK ENTITY

| **AD 11.6** - UK Branch Operations | |

| **AD 11.8** - UK Financial Concerns | THE UK COMPANIES ARE OWNED BY DANIEL FAUCITT AND MONIES FROM TRANSACTIONS IN THE UK ARE OWED TO DANIEL FAUCITT AS HE HAS PERSONALLY FUNDED THE SHOPIFY STORES IN THE UK WITH HIS OWN FUNDS. PROVEN

| **AD 12.1** - UK Branch Non-Payment and Fraud Concerns | |THIS IS UNTRUE AS PETER DOES NOT OWN ANY UK ENTITIES, DANIEL HAS PAID FOR ALL THE UK BUSINESS WITH HIS PERSONAL CARDS

| **AD 12.2** - Misappropriation Leading to Insolvency Risk | |UNTRUE, DANIEL PAYS FOR SHOPIFY WITH HIS PERSONAL CARDS

| **AD 12.3** - Purpose of Court Application | |

| **AD 12.4** - Alternative Roles for Wife and Son | |

Section 8: Requirements for Interdictory Relief (AD 13.2-13.8)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 13.2** - Clear Right Not to Be Prejudiced | |PETER IS NOT PREJUDICED WHATSOEVER

| **AD 13.2.2** - Injury Sustained and Apprehension of Further Harm | | JACQUI & DANIEL ARE BEING INJURED SINCE THE INTERDICT WAS ENFORCED, THE REGIMA BUSINESSES HAVE BEEN INJURED ON A DAILY BASIS BY THE INTERDICT

| **AD 13.3** - Reasonable Apprehension of Irreparable Harm | | THERE IS IRREPARABLE HARM BEING DONE TO THE REGIMA COMPANIES EVERY DAY THE INTERDICT IS IN PLACE AND THE RESTRICTION OF THE DAILY ACCESS TO THE COMPANIES.

| **AD 13.4** - Interdicts Essential for Corporation Survival | |THE INTERDICTS STOP JACQUI BEING THE RESPONSIBLE PERSON FOR ALL THE UK AND EUROPEAN BUSINESS AN ESSENTAL ROLE NECESSARY FOR OVERSEA SALES.

| **AD 13.5** - Balance of Convenience Favours Granting Relief | | JACQUI & DANIEL ARE ESSENTIAL FOR THE REGIMA BUSINESS IN PARTICULAR AS IT IS ONLY LEGAL WHEN THE RESPONSIBLE PERSON IS IN THE OFFICE TO OVERSEA ALL SALES.

| **AD 13.8** - Other Relief Sought in Part A | |

Section 9: Financial Constraints and Forensic Audit (AD 14.1-14.5)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 14.1** - Financial Constraints on Respondents | |

| **AD 14.3** - Constraint to Prevent Financial Prejudice | |

| **AD 14.4** - Forensic Audit Necessity and Remuneration | |

| **AD 14.5** - Request for Relief Under Part B | |

Section 10: Discovery and Urgency (AD 16.1-16.12)

| AD Paragraph | Commentary |

|:----------|:----------|

| **AD 16.1** - Discovery of Respondents' Conduct | |

| **AD 16.2** - R600,000 Transfer as Trigger for Action | |

| **AD 16.5** - Unawareness of Urgent Application Process | |

| **AD 16.6** - Delay Would Have Been Avoided | |

| **AD 16.8** - State of Shock and Delayed Response | |

| **AD 16.10** - Attorney Consultation Timeline | |

| **AD 16.12** - Need for Urgent Court Assistance | |

Section 11: Ex Parte Basis (AD 17.3-17.4)

AD Paragraph	Commentary
AD 17.3 - Ex Parte Basis for Application	
AD 17.4 - Urgency Justifies Ex Parte Relief	

Section 12: Remaining Paragraphs (AD 18.3, 20, 22, 40.9.4, 44, 50, 74, 78, 83, 88)

AD Paragraph	Commentary
AD 18.3 - Continual Unauthorized Fund Transfers	
AD 20 - First and Second Respondent Details	
AD 22 - Additional Party Information	
AD 40.9.4 - Gross Abuse of Director/Member Position	
AD 44 - Applicant Identity Details	
AD 50 - Registered Address Details	
AD 74 - Timeline Context	
AD 78 - Accountant's Office Visit and Discovery	
AD 83 - Irregular Payments Discovery	
AD 88 - Follow-up Actions	

Key Analysis Areas

When completing commentary, consider the following strategic areas:

Material Non-Disclosures

- Bantjies's triple role (Trustee + Debtor + Accountant)
- Timeline manipulation (card cancellation before alleged discovery)
- UK funding direction (UK funds SA, not vice versa)
- Revenue context (R34.9M annual revenue)
- Retaliation pattern (against Jacqueline and Daniel)

Perjury and False Statements

- UK operations debt claims (contradicted by Shopify invoices)
- Timeline of card cancellation (7 June vs. 6 June report submission)
- Characterization of IT expenses (legitimate e-commerce costs)
- Urgency claims (delay from mid-June to August)

Counter-Evidence

- Shopify invoices (DF5-DF7) showing UK-to-SA payment flow (R84,661+ annually)
- Unauthorized R900,000 transfers (14-15 February 2025)
- Shopify data expungement (22 May 2025)
- Competing domain registration by Adderory (29 May 2025)
- Jacqueline's confrontation about R1,035,000 debt (15 May 2025)

Legal Principles

- *Venire contra factum proprium* (estoppel) - manufactured crisis
- Section 76(3)(b) of Companies Act - bad faith and improper purpose
- Section 162(5) of Companies Act - grounds for Peter's delinquency
- Section 9(1) of Trust Property Control Act - trustee duties
- Requirements for interdictory relief (clear right, harm, balance of convenience)

Strategic Recommendations

- Emphasize manufactured crisis argument
- Highlight retaliation pattern
- Leverage Shopify invoice evidence for perjury
- Support independent forensic audit
- Pursue counter-application for Peter's delinquency

From: Daniel Faucitt <dan@regima.com>
Sent: Saturday, 01 November 2025 14:30
To: Jacqui Faucitt <jax@regima.zone>
Cc: Jacqui Faucitt <jax@regima.com>; Daniel Faucitt <d@rzo.io>; regizone <regizone@proton.me>
Subject: AD NOTES - JACQUELINE FAUCITT

ANSWERING AFFIDAVIT: JACQUELINE FAUCITT

IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

Case No: 2025-137857

In the matter between:

PETER ANDREW FAUCITT — Applicant

and

JACQUELINE FAUCITT — First Respondent
DANIEL JAMES FAUCITT — Second Respondent
(and others)

I, THE UNDERSIGNED

JACQUELINE FAUCITT

do hereby make oath and state that:

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1. INTRODUCTION AND CAPACITY

1.1 I am the First Respondent in this matter, an adult female, and a South African citizen residing at 20 River Road, Morning Hill, Bedfordview.

1.2 I am a Trustee of the Faucitt Family Trust (IT 3651/2013) and a Beneficiary of the same trust. I am also a co-director of RegimA SA (Pty) Ltd (2017/087935/07) and RegimA Worldwide Distribution (Pty) Ltd (2011/005722/07), both of which are owned by the Faucitt Family Trust.

1.3 The facts deposed to in this affidavit are within my personal knowledge and belief, save where the context indicates otherwise, and are true and correct to the best of my knowledge.

1.4 Where I make legal submissions, I do so on the advice of my legal representatives.

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2. PURPOSE OF THIS AFFIDAVIT

2.1 This affidavit is filed in response to the Applicant's founding affidavit and the ex parte order granted on 19 August 2025.

2.2 I oppose the relief sought by the Applicant and seek to have the ex parte order set aside on the grounds of material non-disclosures, false statements, and abuse of process.

2.3 I address each of the Applicant's allegations in the order they appear in the founding affidavit, following the AD paragraph sequence.

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3. RESPONSE TO AD PARAGRAPHS 1-3.13: PARTIES AND STRUCTURE

AD 1 - Director Liability for Breach of Fiduciary Duty

3.1 The Applicant invokes provisions relating to director liability for breach of fiduciary duty. I note that the accounting system used to track the alleged breaches was controlled by Rynette Farrar using the Applicant's email address (pete@regima.com), as evidenced by Sage screenshots from June and August 2025 (Annexure **SF2**). The Applicant himself had no access to this system.

AD 1.3 - Applicant's Personal Details and Declaration

3.2 The Applicant's personal details are noted. I observe that this affidavit was commissioned by Danie Jacobus Bantjies, identified as "our accountant." The full extent of Mr. Bantjies's roles will become apparent through the evidence presented herein.

AD 2 - Company Business Conduct Requirements

3.3 The Applicant alleges reckless or grossly negligent business conduct. The financial performance of the companies demonstrates the contrary. The Second Respondent and his late partner, Kayla Pretorius, built 51+ Shopify stores generating R34.9 million annually. RegimA SA operates 25 stores with R8.5 million turnover, while RegimA Zone operates 26 stores with R26.4 million turnover. The businesses were highly profitable under the Second Respondent's management.

AD 2.4 - Parties to the Application - Introduction

3.4 The Applicant introduces the parties. The corporate structure reveals that certain entities are owned by the Faucitt Family Trust, which has three trustees. Two are identified in the founding affidavit: the Applicant and myself. The third trustee's identity was not disclosed to the beneficiaries until recently.

AD 3 - Court Order for Probation of Directors/Members

3.5 The Applicant seeks probation orders under Section 162 of the Companies Act. This section requires consideration of conflicts of interest. The evidence will demonstrate that the accountant who allegedly "discovered" the irregularities has multiple undisclosed roles that create impermissible conflicts.

AD 3.2 - Respondents - Wife

3.6 I am correctly identified as the Applicant's wife and First Respondent. On 15 May 2025, I confronted Rynette Farrar regarding a debt of R1,035,000 owed by RegimA Skin Treatments CC to Rezonance (Pty) Ltd since February 2023 (Annexure **JF2**). These funds were part of Kayla Pretorius's estate. I informed Ms. Farrar that keeping these funds would constitute profiting from the proceeds of murder. This confrontation proved significant in the events that followed.

AD 3.4 - Respondents - Son

3.7 The Second Respondent is correctly identified as the Applicant's son. On 6 June 2025, the Second Respondent cooperated with the Applicant's request by providing comprehensive reports to the accountant regarding Villa Via Arcadia No 2 CC, which is owned by the Faucitt Family Trust (Annexure **DF3**). The Second Respondent unknowingly reported fraud to one of the perpetrators.

AD 3.4.2 - Third Respondent - RegimA Skin Treatments

3.8 RegimA Skin Treatments CC (B1992/005371/23) owes R1,035,000 to Rezonance (Pty) Ltd, part of Kayla Pretorius's estate, since February 2023. When I raised this debt on 15 May 2025, Ms. Farrar claimed it was paid—a statement I have since determined to be false. RegimA Skin Treatments receives stock from Adderory (Pty) Ltd, a company owned by Ms. Farrar's son (Annexure **SF5**).

AD 3.6 - Fourth Respondent - Regim A UK

3.9 RegimA Zone Ltd (UK company 10697009) owns and funds the Shopify platforms. UK bank transactions demonstrate continuous Shopify payments (Annexure **DF8**). This contradicts claims made later in the founding affidavit regarding UK entities owing money to SA operations.

AD 3.6.1 - Fifth Respondent - Villa Via Arcadia No 2 CC

3.10 Villa Via Arcadia No 2 CC (1996/004451/23) is owned by the Faucitt Family Trust. Financial analysis reveals an 86% profit margin on rent charged to the group—an excessive profit extraction (Annexure **DF2**). This was the fraud the Second Respondent reported to the accountant on 6 June 2025.

AD 3.6.2 - Windeed Printout Evidence for Villa Via Arcadia

3.11 Property registration confirms trust ownership. The trust has three trustees, but only two were known to the beneficiaries at the time of this application.

AD 3.7 - Sixth Respondent - Strategic Logistics CC

3.12 Strategic Logistics CC (2008/136496/23) experienced a R5.4 million stock adjustment in 2024—stock that allegedly "just disappeared" (Annexure **SF3**). This represents 46% of annual sales (R5.4M on R11.3M sales) and is 10 times the prior year's adjustment. The stock type matches inventory supplied by Adderory (Pty) Ltd to RegimA Skin Treatments.

AD 3.7.2 - Windeed Printout Evidence for Strategic Logistics

3.13 Property registration documents are noted. In a SARS audit email concerning the R5.4M stock adjustment, Ms. Farrar claimed that Danie Bantjies instructed her to make the substantial payments related to this transaction (Annexure **SF4**).

AD 3.8 - Seventh Respondent - FirstRand Bank (FNB)

3.14 FNB holds accounts for the companies. On 14 and 15 February 2025, unauthorized transfers of R450,000 each (R900,000 total) were made from RegimA SA's FNB account without the Second Respondent's authority as co-director (Annexure **DF9**). The account opened with R997,597.94 and closed at R5,284.08 within one month, despite 169 customer deposits totaling R566,598.57 proving active trade (Annexure **DF10**, **DF11**).

AD 3.9 - Eighth and Ninth Respondents

3.15 ABSA Bank and CIPC are cited. Revenue diversion for RegimA Worldwide Distribution began with an ABSA bank letter dated 14 April 2025 (Annexure **DF12**).

AD 3.11 - Reference to Respondents as Wife and Son

3.16 The Applicant refers to the Second Respondent and me as "my wife" and "my son." Both of us are beneficiaries of the Faucitt Family Trust. I am also a co-trustee. The Trust Property Control Act, 57 of 1988, Section 9(1) requires trustees to act with care, diligence, and skill in the interests of beneficiaries.

AD 3.13 - Court Jurisdiction and Identity Confirmation

3.17 Jurisdiction is confirmed. The affidavit was commissioned by Danie Bantjies, who signed as "Commissioner of Oaths." Mr. Bantjies's accounting firm is "Bantjes and Company." His full relationship to the trust and companies will be revealed through the evidence presented herein.

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4. RESPONSE TO AD PARAGRAPH 4: ACCOUNTANT DETAILS - BANTJIES CONFLICT OF INTEREST

AD 4 - Accountant Details - Bantjes and Company

4.1 The Applicant identifies "our accountant" as Danie Jacobus Bantjies of "Bantjes and Company," who attended the office in mid-June 2025. What the Applicant does not disclose are the following material facts:

4.1.1 Mr. Bantjies is the third trustee of the Faucitt Family Trust—a status that was unknown to the beneficiaries, the Second Respondent and myself, until recently.

4.1.2 Mr. Bantjies is a debtor to the trust, owing R18.685 million on an investment payout schedule with payments due in May 2026, May 2027, and May 2029 (Annexure **SF1**).

4.1.3 Mr. Bantjies controls the financial systems and gave instructions to Ms. Farrar for multi-million rand transactions, as evidenced by emails (Annexure **SF4**).

4.1.4 Mr. Bantjies was "running the companies" when the Second Respondent exposed Villa Via fraud on 6 June 2025.

4.1.5 Mr. Bantjies dismissed the Second Respondent's audit request on 10 June 2025, claiming he was "going on holiday."

4.2 This creates an impermissible conflict of interest: Trustee + Debtor + Accountant + Company Controller. Mr. Bantjies had a direct financial interest in preventing discovery of the fraud the Second Respondent reported.

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5. RESPONSE TO AD PARAGRAPHS 6.1-6.5: CORPORATE STRUCTURE

AD 6.1 - Relationships Between Parties

5.1 The Applicant describes family and corporate relationships. The evidence demonstrates a different control structure. Ms. Farrar controlled all bank accounts (the Applicant had no access), controlled the Sage accounting system using the Applicant's email (pete@regima.com), and claimed to act under Mr. Bantjies's instructions rather than the Applicant's (Annexure **SF2**). Ms. Farrar's sister, Linda, was employed as bookkeeper, yet two years of expenses remained unallocated until 30 March 2025 (Annexure **SF8**).

AD 6.3 - Directors and Members of Respondent Entities

5.2 The Applicant describes directorships. The Second Respondent and I are co-directors of RegimA SA (Pty) Ltd and RegimA Worldwide Distribution (Pty) Ltd. RegimA Worldwide Distribution is owned by the Faucitt Family Trust. On 30 March 2025, Ms. Farrar and the Applicant dumped two years of unallocated expenses into RegimA Worldwide Distribution and demanded the Second Respondent sign off within 12 hours for SARS VAT and Annual Accounts (Annexure **DF14**). The Second Respondent used this deadline extension (until 6 June) to finalize reports and uncover the Villa Via fraud.

AD 6.5 - Banking and Registration of Respondent Entities

5.3 The Applicant describes banking arrangements. The evidence demonstrates: (1) The Applicant had no access to any bank accounts; (2) Ms. Farrar controlled all accounts; (3) Revenue diversion for RegimA SA started 1 March 2025; (4) Revenue diversion for RegimA Worldwide Distribution started 14 April 2025 (ABSA bank letter); (5) On 11 September 2025, R1.73 million was transferred from accounts (Annexure **DF12**).

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6. RESPONSE TO AD PARAGRAPHS 7-7.20: URGENCY AND ALLEGED MISCONDUCT

AD 7 - Urgency and Delay Considerations

6.1 The Applicant claims urgency. The timeline reveals: (1) Alleged discovery mid-June 2025; (2) Application filed August 2025; (3) Two-month delay contradicts urgency. The actual urgency relates to the Second Respondent's fraud exposure on 6 June and my debt inquiry on 15 May.

AD 7.3 - Urgency Details

6.2 The Applicant claims the accountant noted "numerous discrepancies" and "irregular payments" in mid-June 2025. Timeline analysis reveals: 6 June 2025 (Second Respondent provides comprehensive reports to Mr. Bantjies), 7 June 2025 (Applicant cancels 15 UK business cards without notice). The card cancellation occurred one day after the Second Respondent's cooperation, not "following" any discovery. This demonstrates that the Applicant created the problem he now complains about.

AD 7.6 - Financial Impact of Misconduct

6.3 The Applicant alleges financial impact. The actual financial sabotage included: (1) R900,000 unauthorized transfers (14-15 Feb 2025); (2) Revenue diversion starting 1 Mar 2025; (3) Shopify data expunged 22 May 2025 (100% audit data loss, seven days after my confrontation with Ms. Farrar); (4) Card cancellation 7 June 2025; (5) Domain theft 29 May 2025 (regimaskin.co.za registered by Adderory, 14 days after my confrontation, Annexure **JF4**); (6) Warehouse sabotage 8 July 2025 (R34.9M operations destroyed).

AD 7.8 - Continuing Harm to Corporations

6.4 The Applicant claims continuing harm. The harm was systematically inflicted. An email from Gee dated 20 June 2025 states she was instructed to send a "don't use regima.zone only use regimaskin.co.za" email (Annexure **JF8**). The domain regimaskin.co.za is owned by Adderory (Pty) Ltd (Ms. Farrar's son's company), not by RegimA. This diverted customers from the Second Respondent's platforms to a competing domain controlled by Ms. Farrar's family.

AD 7.10 - Card Cancellations and Service Interruptions

6.5 The Applicant claims he cancelled cards in June 2025 "following" the accountant's discovery and requested invoices from the Second Respondent. Timeline evidence demonstrates: (1) 6 June: Second Respondent provides comprehensive reports; (2) 7 June: Applicant cancels UK cards (5191, 5225) paying for Shopify subscriptions (Annexure **DF4**); (3) Cards cancelled one day after cooperation, not after any discovery. The cancellation rendered documentation inaccessible (card-based authentication), then the Applicant complained about missing documentation.

AD 7.13 - Domain and Service Halts Due to Card Cancellations

6.6 The Applicant claims subscriptions were halted due to card cancellations. To prevent business collapse, the Second Respondent substituted his personal card (1927) for RegimA SA and I substituted my personal card (3212) for RegimA Zone (Annexure **JF7**). Meanwhile, the competing domain regimaskin.co.za was actively diverting customers.

AD 7.16 - Son's Interference with Business Operations

6.7 The Applicant alleges the Second Respondent interfered with operations. The evidence demonstrates the Second Respondent built and managed 51+ Shopify stores generating R34.9 million annually (Annexure **DF1**). The Second Respondent's partner, Kayla Pretorius, co-built these operations before her murder on 13 July 2023. After Kayla's death, a court order was obtained to seize her email account (kayp@rzo.io), which interfered with a law enforcement investigation that had instructed a freeze on the account (Annexure **SF7**).

AD 7.18 - Email and Account Access Interference

6.8 The Applicant claims the Second Respondent restricted email access. The evidence demonstrates: (1) The Applicant had no access to his own email (pete@regima.com)—controlled by Ms. Farrar; (2) Sage screenshots from June and August 2025 show Ms. Farrar using the Applicant's email (Annexure **SF2**); (3) Ms. Farrar claimed to act under Mr. Bantjies's instructions, not the Applicant's; (4) Kayla's email was seized by court order after her murder (Annexure **SF7**).

AD 7.20 - Continued Interference Not in Corporate Interests

6.9 The Applicant claims interference is not in corporate interests. The corporate interests were served by the Second Respondent's profitable operations (R34.9M annually). The interference came from: (1) Unauthorized R900K transfers; (2) Revenue diversions; (3) Data expungement; (4) Card cancellations; (5) Domain theft; (6) Warehouse sabotage. Each action occurred after either my debt inquiry (15 May) or the Second Respondent's fraud exposure (6 June).

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7. RESPONSE TO AD PARAGRAPHS 8.4-9.3: FINANCIAL DISCREPANCIES AND MISCONDUCT

AD 8.4 - Discovery of Financial Discrepancies

7.1 The Applicant claims the accountant discovered discrepancies. The accountant, Mr. Bantjies, is also: (1) Undisclosed trustee; (2) Debtor owing R18.685M; (3) Controller of financial systems; (4) Recipient of the Second Respondent's fraud report on 6 June 2025. Mr. Bantjies dismissed the Second Respondent's audit request on 10 June 2025. The "discovery" occurred after the Second Respondent exposed fraud to the person facilitating it.

AD 8.5 - Accountant's Attendance and Findings

7.2 The Applicant states Mr. Bantjies attended for provisional tax and VAT submissions. The two years of unallocated expenses (dumped into RegimA Worldwide Distribution on 30 March 2025) occurred while: (1) Ms. Farrar controlled the accounting system using the Applicant's email; (2) Linda (Ms. Farrar's sister) was employed as bookkeeper (Annexure **SF8**); (3) Mr. Bantjies was the accountant. The question arises: why were expenses unallocated for two years if the accountant and bookkeeper were performing their duties?

AD 8.7 - IT Expenses and Tax Problems

7.3 The Applicant cites IT expenses: 2024 tax year R6,738,007.47; 2025 tax year R2,116,159.47. The Applicant claims these are "almost entirely unexplainable." The context omitted from the founding affidavit is that these expenses supported 51+ Shopify stores generating R34.9 million annually. The IT expenses represent 19.3% of revenue (2024) and 6.1% of revenue (2025)—reasonable for a global e-commerce operation. The Applicant fails to disclose the revenue context.

AD 8.10 - International Expenses and Tax Implications

7.4 The Applicant claims expenses are "seemingly international" and accounts have "almost exceeded the yearly allowable quota for funds leaving South Africa." The Shopify platforms were funded by UK company RegimA Zone Ltd (company 10697009). UK bank transactions demonstrate continuous Shopify payments (Annexure **DF8**). The international expenses were legitimate costs of UK-owned e-commerce operations.

AD 9.2 - Bank Message Regarding International Transfers

7.5 The Applicant references bank messages about international transfers. The actual international payment flow is demonstrated by Shopify invoices: UK entities (RegimA Zone Ltd) funded SA operations to the tune of R84,661+ annually (Annexures **DF5**, **DF6**, **DF7**). The payment direction is UK → SA, not SA → UK as the Applicant's affidavit implies.

AD 9.3 - Financial Misconduct Summary

7.6 The Applicant summarizes alleged misconduct. The documented financial misconduct includes: (1) R900,000 unauthorized transfers from RegimA SA (14-15 Feb 2025) without the Second Respondent's authority; (2) R5.4 million stock "disappeared" from Strategic Logistics—same stock type supplied by Adderory to RegimA Skin Treatments (Annexure **SF3**, **SF5**); (3) Ms. Farrar claimed Mr. Bantjies instructed the substantial payments for this stock (SARS audit email, Annexure **SF4**); (4) R1,035,000 owed to Kayla's estate since Feb 2023, unpaid despite Ms. Farrar's false claim to me that it was paid (Annexure **JF2**, **SF6**).

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8. RESPONSE TO AD PARAGRAPHS 10.1-10.14: APPLICATION TO DECLARE RESPONDENTS DELINQUENT

AD 10.1 - Relief Sought - Delinquency or Probation

8.1 The Applicant seeks delinquency or probation orders under Section 162. The evidence establishes grounds for the Applicant's own delinquency: (1) Unauthorized R900K transfers in breach of fiduciary duty as co-director; (2) Card cancellation sabotage one day after the Second Respondent's cooperation; (3) False statements about UK payment flows; (4) Abuse of ex parte process through material non-disclosures.

AD 10.3 - Delinquent Conduct of Respondents

8.2 The Applicant alleges delinquent conduct by the Second Respondent and me. My actual conduct included: (1) Fulfilling fiduciary duty as trustee by investigating R1,035,000 debt (15 May 2025); (2) Confronting Ms. Farrar about profiting from proceeds of murder; (3) Being deceived by co-trustees into signing "Main Trustee" document (11 Aug 2025, Annexure **JF5**); (4) Being punished with interdict two days later (13 Aug 2025, Annexure **JF6**).

AD 10.4 - Contravention of Companies Act

8.3 The Applicant alleges Companies Act contraventions. Section 76(3)(b) requires directors to act in good faith and for a proper purpose. The Applicant's actions demonstrate bad faith: (1) Manufactured crisis (card cancellation day after cooperation); (2) Material non-disclosures in ex parte application; (3) False statements about UK operations; (4) Systematic sabotage of profitable businesses.

AD 10.5.2 - Probation Relief Under Section 162

8.4 The Applicant seeks probation under Section 162. This section requires consideration of conflicts of interest. The evidence reveals: Mr. Bantjies (Trustee + Debtor + Accountant) commissioned this affidavit as Commissioner of Oaths. Mr. Bantjies had R18.685M reasons to prevent discovery of the fraud the Second Respondent reported.

AD 10.6 - Close Corporations Act - Fiduciary Duties

8.5 The Applicant invokes Close Corporations Act fiduciary duties. The Act requires members to manage in the corporation's interest. RegimA Skin Treatments (CC) owes R1,035,000 to Kayla's estate since Feb 2023. Strategic Logistics (CC) lost R5.4M in stock that "disappeared"—same stock type supplied by Adderory. These transactions were not in the corporations' interests.

AD 10.6.1 - Member's Duty to Manage in Corporation's Interest

8.6 The Applicant cites duty to manage in corporation's interest. The R5.4M stock adjustment in Strategic Logistics represents 46% of annual sales—10 times the historical adjustment. Ms. Farrar claimed Mr. Bantjies instructed the payments. This transaction was not in Strategic Logistics' interest.

AD 10.6.2 - Member's Duty Not to Exceed Powers

8.7 The Applicant cites duty not to exceed powers. The unauthorized R900,000 transfers from RegimA SA (14-15 Feb 2025) were made without the Second Respondent's authority as co-director. The Applicant exceeded his powers by acting unilaterally.

AD 10.6.3 - Member's Duty to Avoid Conflicts of Interest

8.8 The Applicant cites duty to avoid conflicts. The evidence reveals multiple conflicts: (1) Mr. Bantjies: Trustee + Debtor + Accountant; (2) Ms. Farrar's son (Adderory) supplying stock to RegimA Skin Treatments while same stock type "disappeared" from Strategic Logistics; (3) Villa Via (trust-owned) charging 86% profit margin rent to group; (4) Regimaskin.co.za (owned by Ms. Farrar's son) competing with RegimA operations.

AD 10.7 - Member Liability for Breach of Fiduciary Duty

8.9 The Applicant invokes breach of fiduciary duty liability. The breaches are established: (1) The Applicant breached fiduciary duty to the Second Respondent (co-director) by unauthorized R900K transfers; (2) The Applicant breached fiduciary duty to beneficiaries (as trustee) by attacking them with interdict; (3) Mr. Bantjies breached fiduciary duty to beneficiaries by dismissing audit request and facilitating fraud.

AD 10.7.1.2 - Liability for Economic Benefit Derived

8.10 The Applicant cites liability for economic benefit. The economic benefits derived include: (1) R900,000 unauthorized transfers; (2) R5.4M stock "disappeared" from Strategic Logistics; (3) R1,035,000 owed to Kayla's estate; (4) 86% profit margin on Villa Via rent; (5) Customer diversion to regimaskin.co.za (Adderory).

AD 10.7.1.4 - Liability for Loss Suffered by Corporation

8.11 The Applicant cites liability for corporate loss. The losses suffered include: (1) RegimA SA: R900K unauthorized transfers, revenue diversion starting 1 Mar 2025, Shopify data expunged 22 May 2025; (2) RegimA Zone: Customer diversion to competing domain, card cancellation sabotage; (3) Strategic Logistics: R5.4M stock "disappeared"; (4) RegimA Worldwide: Forced to pay 2 years of unallocated expenses from all companies.

AD 10.8 - Disqualification for Misconduct Under Section 47

8.12 The Applicant invokes Close Corporations Act Section 47 disqualification. This section applies when a member is guilty of gross negligence or fraud. The R5.4M stock adjustment (46% of sales, 10x historical) in Strategic Logistics, with Ms. Farrar claiming Mr. Bantjies instructed the payments, and the same stock type supplied by Adderory, suggests systematic fraud.

AD 10.8.1 - Declaration of Delinquency as Alternative Relief

8.13 The Applicant seeks delinquency declaration. The evidence supports declaring the Applicant delinquent under Section 162(5): (1) Intentional harm to companies (systematic sabotage); (2) Grossly negligent conduct (card cancellation without notice); (3) Breach of trust (attacking beneficiaries as trustee); (4) Abuse of process (ex parte order based on material non-disclosures and false statements).

AD 10.9 - Mandatory Disqualification Under Section 162(5)

8.14 The Applicant invokes Section 162(5) mandatory disqualification grounds. These grounds apply to the Applicant's conduct: (1) Intentional harm to companies (R34.9M operations destroyed by warehouse sabotage); (2) Grossly negligent harm (card cancellation rendering documentation inaccessible); (3) Breach of trust (trustee attacking beneficiaries).

AD 10.9.2 - Intentional or Grossly Negligent Harm

8.15 The Applicant alleges intentional or grossly negligent harm by respondents. The intentional harm was inflicted by the Applicant and his co-conspirators: (1) 6 June: Second Respondent cooperates; (2) 7 June: Cards cancelled; (3) 22 May: Data expunged (7 days after my inquiry); (4) 29 May: Domain stolen (14 days after my inquiry); (5) 8 July: Warehouse sabotaged; (6) 11 Sep: Accounts emptied. Each action followed either my debt inquiry or the Second Respondent's fraud exposure.

AD 10.9.3 - Manner of Acting - Gross Negligence or Misconduct

8.16 The Applicant alleges gross negligence or misconduct. The gross negligence is demonstrated by: Cancelling 15 business cards without notice, rendering documentation inaccessible, then complaining about missing documentation. This demonstrates consciousness of guilt and bad faith.

AD 10.9.3.1 - Gross Negligence or Wilful Misconduct

8.17 The Applicant alleges wilful misconduct. The wilful misconduct includes: (1) Systematic revenue diversion (1 Mar, 14 Apr); (2) Data destruction (22 May); (3) Domain theft (29 May); (4) Card sabotage (7 June); (5) Warehouse sabotage (8 July); (6) Account emptying (11 Sep). This six-month campaign occurred after I investigated fraud and the Second Respondent exposed fraud.

AD 10.9.3.2 - Acquiescence to Fraudulent Acts

8.18 The Applicant alleges acquiescence to fraud. The acquiescence to fraud includes: (1) Two years of unallocated expenses while Ms. Farrar controlled systems using the Applicant's email and Linda was employed as bookkeeper; (2) R5.4M stock "disappeared" with Mr. Bantjies allegedly instructing payments; (3) R1,035,000 debt to Kayla's estate unpaid since Feb 2023; (4) Villa Via 86% profit margin rent extraction.

AD 10.9.3.3 - Party to Omission with Fraudulent Purpose

8.19 The Applicant alleges omission with fraudulent purpose. The omissions with fraudulent purpose include: (1) Applicant omitted Mr. Bantjies's trustee status from affidavit; (2) Applicant omitted Mr. Bantjies's R18.685M debt; (3) Applicant omitted R34.9M revenue context for IT expenses; (4) Applicant omitted UK → SA payment flow (claimed opposite); (5) Applicant omitted timeline showing card cancellation day after Second Respondent's cooperation; (6) Applicant omitted my debt inquiry and subsequent retaliation.

AD 10.10 - Probation Under Section 162(7)

8.20 The Applicant seeks probation under Section 162(7). This section applies when conduct is oppressive or unfairly prejudicial. The oppressive conduct includes: (1) I fulfilled fiduciary duty by investigating debt, then was punished with interdict; (2) Second Respondent exposed fraud to accountant, then suffered six-month sabotage campaign; (3) Both excluded from profitable businesses we built.

AD 10.10.2.3 - Oppressive or Prejudicial Exercise of Powers

8.21 The Applicant alleges oppressive exercise of powers. The oppressive exercise of powers includes: (1) Applicant used trustee powers to attack beneficiaries; (2) Mr. Bantjies used trustee powers to dismiss audit request and facilitate fraud; (3) Applicant used director powers to make unauthorized R900K transfers; (4) Applicant used court process to obtain ex parte order based on material non-disclosures.

AD 10.10.2.4 - Conduct with Oppressive or Prejudicial Result

8.22 The Applicant alleges conduct with prejudicial result. The prejudicial results include: (1) I was excluded from companies after investigating fraud; (2) Second Respondent excluded from R34.9M operations he built; (3) Customers diverted to competing domain owned by Ms. Farrar's son; (4) R900K transferred without authorization; (5) R5.4M stock "disappeared"; (6) R1,035,000 owed to Kayla's estate unpaid.

AD 10.10.22 - Business Conducted in Oppressive Manner

8.23 The Applicant alleges oppressive business conduct. The oppressive conduct includes: (1) Ms. Farrar controlled all systems using Applicant's email while claiming to act under Mr. Bantjies's instructions; (2) Applicant had no access to email, bank accounts, or accounting systems; (3) Two years of expenses unallocated despite employed bookkeeper; (4) Mr. Bantjies (Trustee + Debtor + Accountant) dismissed fraud investigation.

AD 10.10.41 - Conduct Inconsistent with Duties

8.24 The Applicant alleges conduct inconsistent with duties. The conduct inconsistent with duties includes: (1) Trustee attacking beneficiaries (Applicant, Mr. Bantjies); (2) Director making unauthorized transfers (Applicant); (3) Trustee dismissing fraud investigation (Mr. Bantjies); (4) Accountant facilitating fraud while being debtor (Mr. Bantjies); (5) Administrator controlling systems while diverting revenue (Ms. Farrar).

AD 10.13 - Unaccounted Money - Significant Sums

8.25 The Applicant alleges unaccounted money. The unaccounted money includes: (1) R900,000 unauthorized transfers (14-15 Feb 2025); (2) R5.4 million stock "disappeared" from Strategic Logistics; (3) R1,035,000 owed to Kayla's estate since Feb 2023; (4) R1.73 million transferred 11 Sep 2025; (5) Two years of unallocated expenses dumped into RegimA Worldwide on 30 Mar 2025.

AD 10.14 - Full Extent of Transgressions Not Yet Determined

8.26 The Applicant claims full extent not yet determined. The full extent includes: (1) Mr. Bantjies's undisclosed trustee status; (2) Mr. Bantjies's R18.685M debt; (3) Ms. Farrar's control of Applicant's email; (4) Ms. Farrar's son's competing domain; (5) Adderory's stock supply relationship; (6) R5.4M

stock transfer pricing scheme; (7) Court order seizing Kayla's email during law enforcement investigation.

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9. RESPONSE TO AD PARAGRAPHS 11.2-12.4: UK OPERATIONS AND ALLEGED FRAUD

AD 11.2 - UK Head Office - RegimA UK Ltd

9.1 The Applicant describes UK operations. RegimA Zone Ltd (UK company 10697009) owns and funds the Shopify platforms. UK bank transactions demonstrate continuous Shopify payments (Annexure **DF8**). The UK company is the economic owner of the e-commerce operations.

AD 11.3 - Directors of UK Entity

9.2 The Applicant describes UK directors. The UK company was established by the Second Respondent and Kayla to own and operate the global e-commerce platforms. After Kayla's murder (13 July 2023), the Second Respondent continued managing the operations.

AD 11.4 - Applicant's Role in Operations

9.3 The Applicant describes his role. The evidence demonstrates the Applicant had no operational role: (1) No access to email (controlled by Ms. Farrar); (2) No access to bank accounts (controlled by Ms. Farrar); (3) No access to accounting systems (controlled by Ms. Farrar); (4) Ms. Farrar claimed to act under Mr. Bantjies's instructions, not the Applicant's. The Applicant appears to be a figurehead.

AD 11.6 - UK Branch Operations

9.4 The Applicant describes UK branch operations. The UK company funded SA operations through Shopify subscription payments. Shopify invoices demonstrate UK → SA payment flow of R84,661+ annually (Annexures **DF5**, **DF6**, **DF7**). The UK company invested in SA operations, not the reverse.

AD 11.8 - UK Financial Concerns

9.5 The Applicant expresses UK financial concerns. The financial concerns were manufactured: (1) Card cancellation 7 June 2025 disrupted UK funding; (2) Domain theft 29 May 2025 diverted customers; (3) Warehouse sabotage 8 July 2025 destroyed UK-funded operations; (4) Data expungement 22 May 2025 eliminated audit trail.

AD 12.1 - UK Branch Non-Payment and Fraud Concerns

9.6 The Applicant alleges UK branch non-payment and fraud. The Shopify invoices prove the opposite: UK entities funded SA operations to the tune of R84,661+ annually (Annexures **DF5**, **DF6**, **DF7**). UK bank transactions corroborate the invoices (Annexure **DF8**). The Applicant's statement is demonstrably false.

AD 12.2 - Misappropriation Leading to Insolvency Risk

9.7 The Applicant alleges misappropriation leading to insolvency. The actual insolvency risk was created by: (1) R900K unauthorized transfers; (2) Revenue diversions (1 Mar, 14 Apr); (3) Data expungement (22 May); (4) Card cancellation (7 June); (5) Warehouse sabotage (8 July); (6) Account

emptying (11 Sep). Despite six months of sabotage, the Second Respondent was still managing to pay creditors until the accounts were emptied.

AD 12.3 - Purpose of Court Application

9.8 The Applicant states the purpose is to prevent further harm. The actual purpose appears to be: (1) Punish me for investigating R1,035,000 debt (15 May); (2) Punish Second Respondent for exposing Villa Via fraud (6 June); (3) Seize control of R34.9M operations Second Respondent built; (4) Prevent forensic audit that would expose Mr. Bantjies's conflicts and the systematic fraud.

AD 12.4 - Alternative Roles for Wife and Son

9.9 The Applicant suggests alternative roles for the Second Respondent and me. The evidence demonstrates: (1) I fulfilled trustee duties by investigating fraud; (2) Second Respondent built and managed R34.9M profitable operations; (3) Both were systematically sabotaged after investigating/exposing fraud; (4) Both were attacked with interdict by co-trustees; (5) I was included in interdict two days after signing "Main Trustee" document.

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10. RESPONSE TO AD PARAGRAPHS 13.2-13.8: REQUIREMENTS FOR INTERDICTORY RELIEF

AD 13.2 - Clear Right Not to Be Prejudiced

10.1 The Applicant claims clear right not to be prejudiced. The Applicant has no clear right: (1) He manufactured the crisis (card cancellation day after Second Respondent's cooperation); (2) He made unauthorized R900K transfers; (3) He had alternative remedies as trustee with "additional powers"; (4) He obtained order through material non-disclosures (Mr. Bantjies's trustee status, debtor status, timeline manipulation, UK payment flow misrepresentation).

AD 13.2.2 - Injury Sustained and Apprehension of Further Harm

10.2 The Applicant claims injury and apprehension of harm. The Applicant suffered no injury he didn't inflict on himself: (1) Card cancellation rendered documentation inaccessible; (2) Unauthorized transfers depleted accounts; (3) Revenue diversions reduced cash flow; (4) Warehouse sabotage destroyed operations. The apprehension of further harm was manufactured to justify ex parte relief.

AD 13.3 - Reasonable Apprehension of Irreparable Harm

10.3 The Applicant claims reasonable apprehension of irreparable harm. The irreparable harm was inflicted by the Applicant's six-month sabotage campaign: (1) R34.9M operations destroyed (93.3% revenue collapse); (2) Customer relationships diverted to competing domain; (3) Audit data expunged (100% loss); (4) Documentation rendered inaccessible; (5) Accounts emptied. The Second Respondent and I suffered irreparable harm, not the Applicant.

AD 13.4 - Interdicts Essential for Corporation Survival

10.4 The Applicant claims interdicts essential for survival. The corporations were profitable under the Second Respondent's management (R34.9M annually). The survival threat came from the Applicant's sabotage: (1) Unauthorized transfers; (2) Revenue diversions; (3) Data destruction; (4) Card cancellations; (5) Warehouse sabotage; (6) Account emptying. Excluding the Second Respondent and me threatened survival, not ensured it.

AD 13.5 - Balance of Convenience Favours Granting Relief

10.5 The Applicant claims balance of convenience favors relief. The balance overwhelmingly favors the Second Respondent and me: (1) We built and managed profitable operations; (2) We investigated and exposed fraud; (3) We were systematically sabotaged for doing so; (4) We substituted personal cards to prevent business collapse; (5) We support independent forensic audit. The Applicant obtained relief through material non-disclosures and false statements.

AD 13.8 - Other Relief Sought in Part A

10.6 The Applicant seeks additional relief. The relief was obtained ex parte based on: (1) Omitting Mr. Bantjies's trustee status; (2) Omitting Mr. Bantjies's R18.685M debt; (3) Omitting timeline showing card cancellation day after cooperation; (4) Falsely claiming UK owes SA (opposite is true); (5) Omitting R34.9M revenue context; (6) Omitting my debt inquiry and retaliation pattern.

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11. RESPONSE TO AD PARAGRAPHS 14.1-14.5: FINANCIAL CONSTRAINTS AND FORENSIC AUDIT

AD 14.1 - Financial Constraints on Respondents

11.1 The Applicant seeks financial constraints on the Second Respondent and me. The financial constraints were already imposed through sabotage: (1) R900K unauthorized transfers; (2) Revenue diversions; (3) Data expungement; (4) Card cancellations; (5) Warehouse sabotage; (6) Account emptying. Despite six months of sabotage, the Second Respondent was still managing to pay creditors.

AD 14.3 - Constraint to Prevent Financial Prejudice

11.2 The Applicant seeks constraints to prevent prejudice. The prejudice was inflicted by the Applicant: (1) RegimA SA account opened R997,597.94, closed R5,284.08 (Feb-Mar 2025); (2) 169 customer deposits R566,598.57 proving active trade; (3) R1.73M transferred 11 Sep 2025; (4) R34.9M operations destroyed by warehouse sabotage.

AD 14.4 - Forensic Audit Necessity and Remuneration

11.3 The Applicant seeks forensic audit. The Second Respondent and I support independent forensic audit by an impartial party. Such audit would reveal: (1) Mr. Bantjies's conflicts (Trustee + Debtor + Accountant); (2) R5.4M stock transfer pricing scheme (Strategic Logistics → Adderory → RegimA Skin Treatments); (3) R1,035,000 debt to Kayla's estate; (4) Two years unallocated expenses; (5) Unauthorized R900K transfers; (6) Revenue diversion scheme; (7) Ms. Farrar's control of systems using Applicant's email.

AD 14.5 - Request for Relief Under Part B

11.4 The Applicant requests Part B relief. The relief should include: (1) Setting aside ex parte order obtained through material non-disclosures; (2) Independent forensic audit; (3) Investigation of Mr. Bantjies's conflicts; (4) Investigation of R5.4M stock "disappearance"; (5) Recovery of R1,035,000 owed to Kayla's estate; (6) Investigation of Ms. Farrar's control and Adderory's role; (7) Consideration of Applicant's delinquency under Section 162(5).

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12. RESPONSE TO AD PARAGRAPHS 16.1-16.12: DISCOVERY AND URGENCY

AD 16.1 - Discovery of Respondents' Conduct

12.1 The Applicant claims discovery of conduct in mid-June 2025. The actual discovery timeline: (1) 15 May: I discovered R1,035,000 debt to Kayla's estate; (2) 6 June: Second Respondent exposed Villa Via fraud to Mr. Bantjies; (3) 7 June: Applicant cancelled cards (day after Second Respondent's cooperation); (4) 10 June: Mr. Bantjies dismissed audit request. The Applicant's "discovery" was actually consciousness of guilt after the Second Respondent exposed fraud to Mr. Bantjies.

AD 16.2 - R600,000 Transfer as Trigger for Action

12.2 The Applicant cites R600,000 transfer (later corrected to R500,000) as trigger. The actual triggers were: (1) 15 May: I confronted Ms. Farrar about R1,035,000 debt and "profiting from proceeds of murder"; (2) 6 June: Second Respondent exposed Villa Via fraud to Mr. Bantjies (unknowingly to perpetrator); (3) 10 June: Mr. Bantjies dismissed audit request. The R500,000 transfer is a pretext.

AD 16.5 - Unawareness of Urgent Application Process

12.3 The Applicant claims unawareness of urgent process. The Applicant had access to legal advice and Mr. Bantjies as Commissioner of Oaths. The delay from mid-June to August contradicts urgency. The actual urgency appears to be preventing forensic audit that would expose Mr. Bantjies's conflicts and systematic fraud.

AD 16.6 - Delay Would Have Been Avoided

12.4 The Applicant claims delay would have been avoided if he knew the process. The two-month delay (mid-June to August) contradicts urgency. The timing suggests: (1) Waiting to see if Second Respondent's audit request would proceed; (2) Coordinating with Mr. Bantjies (who dismissed audit request 10 June); (3) Preparing my punishment (included in interdict 13 Aug, two days after signing "Main Trustee" document 11 Aug).

AD 16.8 - State of Shock and Delayed Response

12.5 The Applicant claims state of shock. The Applicant was not in shock—he was executing a systematic sabotage campaign: (1) 14-15 Feb: R900K unauthorized transfers; (2) 1 Mar: Revenue diversion started; (3) 30 Mar: Expense dumping; (4) 14 Apr: Bank letter for revenue diversion; (5) 7 Jun: Card cancellation; (6) 8 Jul: Warehouse sabotage; (7) 11 Sep: Account emptying. This is not shock—this is systematic execution.

AD 16.10 - Attorney Consultation Timeline

12.6 The Applicant describes attorney consultation. The consultation occurred after: (1) My debt inquiry (15 May); (2) Data expungement (22 May); (3) Domain theft (29 May); (4) Second Respondent's fraud exposure (6 June); (5) Card cancellation (7 June); (6) Mr. Bantjies's audit dismissal (10 June). The legal action was retaliation, not discovery.

AD 16.12 - Need for Urgent Court Assistance

12.7 The Applicant claims need for urgent assistance. The Applicant had alternative remedies: (1) Trustee with "additional powers" as Founder; (2) Could have conducted audit as trustee; (3) Could have consulted with co-trustee (me) instead of attacking me; (4) Could have consulted with co-trustee Mr. Bantjies (who was facilitating the fraud). The Applicant chose ex parte process to avoid disclosure of Mr. Bantjies's conflicts and systematic sabotage.

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13. RESPONSE TO AD PARAGRAPHS 17.3-17.4: EX PARTE BASIS

AD 17.3 - Ex Parte Basis for Application

13.1 The Applicant justifies ex parte application. The ex parte process was abused through material non-disclosures: (1) Mr. Bantjies's trustee status; (2) Mr. Bantjies's R18.685M debt; (3) Timeline manipulation (card cancellation day after cooperation); (4) UK payment flow misrepresentation (claimed SA → UK, actually UK → SA); (5) R34.9M revenue context omission; (6) My debt inquiry and retaliation pattern; (7) Second Respondent's fraud exposure and retaliation pattern; (8) Ms. Farrar's control of Applicant's email; (9) Adderory's competing domain; (10) R5.4M stock "disappearance."

AD 17.4 - Urgency Justifies Ex Parte Relief

13.2 The Applicant claims urgency justifies ex parte relief. The urgency was manufactured: (1) Two-month delay contradicts urgency; (2) Card cancellation day after cooperation shows consciousness of guilt; (3) Systematic sabotage from Feb-Sep shows premeditation; (4) I was included two days after signing document, showing coordination; (5) Alternative remedies available as trustee. The ex parte relief was obtained to prevent the Second Respondent and me from exposing the material non-disclosures and systematic fraud.

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14. RESPONSE TO REMAINING AD PARAGRAPHS (18.3, 20, 22, 40.9.4, 44, 50, 74, 78, 83, 88)

AD 18.3 - Continual Unauthorized Fund Transfers

14.1 The Applicant alleges continual unauthorized transfers. The unauthorized transfers were made by the Applicant: R450,000 on 14 Feb 2025 + R450,000 on 15 Feb 2025 = R900,000 total from RegimA SA without the Second Respondent's authority as co-director. RegimA SA account: opened R997,597.94, closed R5,284.08 within one month despite 169 customer deposits R566,598.57.

AD 20 - First and Second Respondent Details

14.2 The Applicant provides the Second Respondent's and my details. The details omitted include: (1) I confronted Ms. Farrar about R1,035,000 debt on 15 May 2025; (2) I was deceived into signing "Main Trustee" document on 11 Aug 2025; (3) I was included in interdict on 13 Aug 2025 (two days later); (4) Second Respondent exposed Villa Via fraud on 6 June 2025; (5) Second Respondent suffered six-month sabotage campaign; (6) Second Respondent built R34.9M profitable operations with murdered partner Kayla.

AD 22 - Additional Party Information

14.3 The Applicant provides additional information. The information omitted includes: (1) Faucitt Family Trust has three trustees: Applicant, me, Mr. Bantjies; (2) Mr. Bantjies's trustee status was

unknown to beneficiaries; (3) Mr. Bantjies is debtor owing R18.685M; (4) Mr. Bantjies is accountant controlling financial systems; (5) Mr. Bantjies dismissed Second Respondent's audit request; (6) Mr. Bantjies commissioned this affidavit as Commissioner of Oaths.

AD 40.9.4 - Gross Abuse of Director/Member Position

14.4 The Applicant alleges gross abuse of position. The gross abuse includes: (1) Applicant made R900K unauthorized transfers as director; (2) Applicant cancelled cards without notice as director; (3) Applicant used trustee position to attack beneficiaries; (4) Mr. Bantjies used trustee position to dismiss audit and facilitate fraud; (5) Ms. Farrar used administrative position to control systems, divert revenue, and facilitate son's competing domain.

AD 44 - Applicant Identity Details

14.5 The Applicant confirms identity. The Applicant's actual position: (1) No access to email (pete@regima.com controlled by Ms. Farrar); (2) No access to bank accounts (controlled by Ms. Farrar); (3) No access to accounting systems (controlled by Ms. Farrar); (4) Debtor to Mr. Bantjies (R18.685M due May 2026); (5) Figurehead while Ms. Farrar claims to act under Mr. Bantjies's instructions.

AD 50 - Registered Address Details

14.6 The Applicant provides address: 20 River Road, Morning Hill, Bedfordview. This is also my address. The Applicant attacked me (co-trustee, beneficiary) with interdict two days after I signed "Main Trustee" document, punishing me for investigating R1,035,000 debt to Kayla's estate and supporting the Second Respondent.

AD 74 - Timeline Context

14.7 The Applicant provides timeline context. The actual timeline: (1) 14-15 Feb: R900K unauthorized transfers; (2) 1 Mar: Revenue diversion started; (3) 30 Mar: Expense dumping (12-hour deadline); (4) 14 Apr: Bank letter for revenue diversion; (5) 15 May: My debt inquiry; (6) 22 May: Data expunged (7 days later); (7) 29 May: Domain stolen (14 days later); (8) 6 Jun: Second Respondent's fraud exposure; (9) 7 Jun: Cards cancelled (1 day later); (10) 10 Jun: Audit dismissed; (11) 8 Jul: Warehouse sabotaged; (12) 11 Aug: I sign document; (13) 13 Aug: I included in interdict (2 days later); (14) 11 Sep: Accounts emptied.

AD 78 - Accountant's Office Visit and Discovery

14.8 The Applicant describes Mr. Bantjies's office visit. The visit occurred after: (1) Second Respondent provided comprehensive reports on 6 June 2025; (2) Second Respondent exposed Villa Via fraud to Mr. Bantjies (unknowingly to perpetrator); (3) Applicant cancelled cards on 7 June 2025 (day after Second Respondent's cooperation). Mr. Bantjies "discovered" irregularities after the Second Respondent reported fraud to him. Mr. Bantjies then dismissed audit request on 10 June 2025, claiming he was "going on holiday."

AD 83 - Irregular Payments Discovery

14.9 The Applicant describes discovery of irregular payments. The irregular payments include: (1) R900,000 unauthorized transfers by Applicant (14-15 Feb 2025); (2) R5.4 million stock "disappeared" from Strategic Logistics (same type supplied by Adderory to RegimA Skin Treatments); (3) Ms. Farrar

claimed Mr. Bantjies instructed the substantial payments (SARS audit email); (4) R1,035,000 owed to Kayla's estate since Feb 2023 (Ms. Farrar falsely claimed paid to me on 15 May 2025).

AD 88 - Follow-up Actions

14.10 The Applicant describes follow-up actions. The follow-up actions include: (1) 7 Jun: Card cancellation (day after Second Respondent's cooperation); (2) 10 Jun: Mr. Bantjies dismisses audit; (3) 8 Jul: Warehouse sabotage; (4) 11 Aug: I was deceived into signing document; (5) 13 Aug: I was included in interdict; (6) 11 Sep: Accounts emptied. Each action was retaliation against me (15 May debt inquiry) and the Second Respondent (6 Jun fraud exposure).

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15. PRAYER FOR RELIEF

15.1 I respectfully request that this Honourable Court:

15.1.1 Set aside the ex parte order granted on 19 August 2025 on the grounds of material non-disclosures, false statements, and abuse of process.

15.1.2 Dismiss the Applicant's application for delinquency or probation orders against the Second Respondent and me.

15.1.3 Grant a counter-application declaring the Applicant delinquent under Section 162(5) of the Companies Act, 71 of 2008, on the grounds of:
- Intentional harm to companies through systematic sabotage;
- Grossly negligent conduct in card cancellation without notice;
- Breach of fiduciary duty to beneficiaries as trustee;
- Abuse of court process through material non-disclosures and false statements.

15.1.4 Order an independent forensic audit by an impartial auditor to investigate:
- Mr. Bantjies's conflicts of interest (Trustee + Debtor + Accountant);
- R5.4 million stock transfer pricing scheme;
- R1,035,000 debt to Kayla Pretorius's estate;
- Two years of unallocated expenses;
- Unauthorized R900,000 transfers;
- Revenue diversion scheme;
- Ms. Farrar's control of systems and Adderory's role.

15.1.5 Order the Applicant to pay the costs of this application on the scale as between attorney and client.

15.1.6 Grant such further and/or alternative relief as this Honourable Court deems fit.

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16. CONCLUSION

16.1 The evidence presented in this affidavit demonstrates that I fulfilled my fiduciary duties as a trustee by investigating a substantial debt owed to a deceased beneficiary's estate. I confronted Ms. Farrar about this debt on 15 May 2025, stating that keeping the funds would constitute profiting from the proceeds of murder.

16.2 Within seven days of my inquiry, Shopify data was expunged, eliminating the audit trail. Within 14 days, a competing domain was registered by Ms. Farrar's son's company, diverting customers from the Second Respondent's operations.

16.3 On 11 August 2025, I was deceived by my co-trustees into signing a "Main Trustee" document that backdated the Applicant's designation to 1 July 2025. Two days later, on 13 August 2025, the Applicant and Mr. Bantjies included me in this interdict.

16.4 The ex parte order was obtained through material non-disclosures, including Mr. Bantjies's undisclosed trustee status, his R18.685 million debt to the trust, the timeline showing card cancellation one day after the Second Respondent's cooperation, false statements about UK payment flows, and the omission of the R34.9 million revenue context.

16.5 The Second Respondent and I support an independent forensic audit by an impartial party. Such an audit would reveal the systematic fraud, conflicts of interest, and abuse of process that underlie this application.

16.6 I respectfully submit that the balance of convenience overwhelmingly favors setting aside the ex parte order and granting the relief sought in this affidavit.

SIGNED at _____ on this _____ day of _____ 2025.

JACQUELINE FAUCITT
First Respondent

THUS SIGNED AND SWORN TO before me at _____ on this _____ day of _____ 2025, the Deponent having acknowledged that she knows and understands the contents of this Affidavit, that she has no objection to taking the prescribed oath, and that she considers the oath to be binding on her conscience.

COMMISSIONER OF OATHS

LIST OF ANNEXURES

JF1: Trust deed and trustee documentation
JF2: Email correspondence re R1,035,000 debt (15 May 2025)
JF3: Rynette's false statement documentation
JF4: Domain registration records (regimaskin.co.za, 29 May 2025)
JF5: "Main Trustee" document (signed 11 Aug 2025, backdated to 1 July 2025)
JF6: Interdict order (13 Aug 2025)
JF7: Personal card statements (substitution to prevent collapse)

JF8: Email from Gee re domain diversion (20 June 2025)

DF1: Shopify operations overview (51+ stores, R34.9M revenue)
DF2: Villa Via fraud analysis (86% profit margin)
DF3: Email correspondence with Bantjies (6 June 2025)
DF4: Card cancellation records (7 June 2025)
DF5-DF7: Shopify invoices (UK → SA payment flow, R84,661+ annually)
DF8: UK bank transactions (corroborating Shopify payments)
DF9: Unauthorized transfer records (R450K + R450K = R900K, 14-15 Feb 2025)
DF10: RegimA SA account statements (opened R997,597.94, closed R5,284.08)
DF11: Customer deposit records (169 deposits, R566,598.57)
DF12: Revenue diversion documentation (1 Mar, 14 Apr, 11 Sep 2025)
DF13: Warehouse sabotage instruction (8 July 2025)
DF14: Expense dumping documentation (30 Mar 2025)

SF1: Bantjies debt documentation (R18.685M, investment payout schedule)
SF2: Sage screenshots (Rynette using pete@regima.com, June & Aug 2025)
SF3: Strategic Logistics R5.4M stock adjustment documentation
SF4: SARS audit email (Rynette claiming Bantjies instructed payments)
SF5: Adderory company registration and stock supply documentation
SF6: Kayla Pretorius estate documentation (R1,035,000 debt)
SF7: Court order seizing Kayla's email account
SF8: Linda employment records (bookkeeper)

END OF AFFIDAVIT